279.68 Student progression — intensive reading instruction — reporting requirements.

1. *Reading proficiency, assessments, and parental notification.*

a. A school district shall assess all students enrolled in kindergarten through grade three at the beginning of each school year for their level of reading or reading readiness on locally determined or statewide assessments, as provided in section 256.7, subsection 31. If a student is not reading proficiently and is persistently at risk in reading, based upon the assessments administered in accordance with this paragraph, the school district shall provide intensive reading instruction to the student. The student's reading proficiency shall be periodically reassessed by locally determined or statewide assessments including periodic universal screening and annual standard-based assessments. The student shall continue to be provided with intensive reading instruction, at grade levels beyond grade three if necessary, until the student is reading at grade level, as determined by the student's consistently proficient performance on valid and reliable measures of reading ability. For purposes of this section, *"persistently at risk"* means the student has not met the grade-level benchmark on two consecutive screening assessments administered under this paragraph.

b. The parent or guardian of any student in kindergarten through grade three who is persistently at risk in reading shall be notified in writing and shall be provided all of the following:

(1) A description of the services currently provided to the student.

(2) A description of the proposed supplemental instructional services and supports that the school district will provide to the student that are designed to remediate the identified areas in which the student is persistently at risk in reading.

(3) Strategies for parents and guardians to use in helping the student read proficiently, including but not limited to the promotion of parent-guided home reading.

(4) Regular updates regarding the student's progress toward reaching or exceeding the targeted level of reading proficiency.

c. (1) Each school district shall provide written notice to the parent or guardian of any student in kindergarten through grade six who is not reading proficiently of the student's level of reading or reading readiness. The written notice shall contain a description of the parent's or guardian's ability to request that the student be retained in the student's current grade level for the subsequent school year.

(2) A school district shall not promote a student who is not reading proficiently to the next grade level, and shall retain the student in the student's current grade level for the subsequent school year, if the student's parent or guardian submits to the school district a request that the student be retained in the student's current grade level pursuant to subparagraph (1).

d. A school district shall provide to students in kindergarten through the end of grade six who are not reading proficiently with personalized reading plans until the student is reading at grade level, as determined by the student's consistently proficient performance on valid and reliable measures of reading ability.

2. *Successful progression for early readers.* If funds are appropriated by the general assembly for purposes of implementing this subsection, a school district shall do all of the following:

a. Provide students who are persistently at risk in reading with intensive instructional services and supports, free of charge, to remediate the identified areas in which students are not proficient in reading, including a minimum of ninety minutes daily of scientific, research-based reading instruction and other strategies prescribed by the school district which may include but are not limited to the following:

(1) Small group instruction.

(2) Reduced teacher-student ratios.

(3) More frequent progress monitoring.

(4) Tutoring or mentoring.

(5) Extended school day, week, or year.

(6) Summer reading programs.

b. At regular intervals, apprise the parent or guardian of academic and other progress being made by the student and give the parent or guardian other useful information.

c. In addition to required reading enhancement and acceleration strategies, provide parents of students who are persistently at risk in reading with a plan outlined in a parental contract, including participation in regular parent-guided home reading.

d. Establish a reading enhancement and acceleration development initiative designed to offer intensive accelerated reading instruction to each kindergarten through grade three student who is persistently at risk in reading. The initiative shall comply with all of the following criteria:

(1) Be provided to all kindergarten through grade three students who are persistently at risk in reading. The assessment initiative shall measure phonemic awareness, phonics, fluency, vocabulary, and comprehension.

(2) Be provided during regular school hours in addition to the regular reading instruction.

(3) Provide a reading curriculum that meets guidelines adopted pursuant to section 256.7, subsection 31, and at a minimum has the following specifications:

(a) Assists students who are persistently at risk in reading to develop the skills to read at grade level. Assistance shall include but not be limited to strategies that formally address dyslexia, when appropriate. For purposes of this subparagraph division (a), *"dyslexia"* means a specific learning disability that is neurobiological in origin, is characterized by difficulties with accurate or fluent word recognition and by poor spelling and decoding abilities, and may include difficulties that typically result from a deficit in the phonological component of language that is often unexpected in relation to other cognitive abilities and the provision of effective classroom instruction, as well as secondary consequences such as problems in reading comprehension and reduced reading experience that can impede growth of vocabulary and background knowledge.

(b) Provides skill development in phonemic awareness, phonics, fluency, vocabulary, and comprehension.

(c) Includes a scientifically based and reliable assessment.

(d) Provides initial and ongoing analysis of each student's reading progress.

(e) Is implemented during regular school hours.

(f) Provides a curriculum in core academic subjects to assist the student in maintaining or meeting proficiency levels for the appropriate grade in all academic subjects.

e. Report to the department of education the specific intensive reading interventions and supports implemented by the school district pursuant to this section. The department shall annually prescribe the components of required or requested reports.

3. *Ensuring continuous improvement in reading proficiency.*

a. To ensure all children are reading proficiently by the end of third grade, each school district shall address reading proficiency, drawing upon information about students from assessments and reassessments conducted pursuant to subsection 1 and the prevalence of areas in which students are persistently at risk in reading identified by classroom, elementary school, and other student characteristics. Each school district shall review chronic early elementary absenteeism for its impact on literacy development. If more than fifteen percent of an attendance center's students are not reading proficiently and are persistently at risk in reading by the end of third grade, the school district shall develop and implement strategies to reduce that percentage, including school and community strategies to raise the percentage of students who are reading at grade level.

b. Each school district, subject to an appropriation of funds by the general assembly, shall provide professional development services to enhance the skills of elementary teachers in responding to children's unique reading issues and needs and to increase the use of evidence-based strategies.

2012 Acts, ch 1119, §34; 2014 Acts, ch 1077, §2; 2016 Acts, ch 1123, §2; 2016 Acts, ch 1132, §12, 13; 2017 Acts, ch 172, §27 – 30; 2020 Acts, ch 1048, §7; 2023 Acts, ch 90, §3; 2024 Acts, ch 1139, §2

Referred to in §256.7, 280.29